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No.

10 - Jack Panossian v. Tesla Motors, Inc.

Plaintiff

Jack Panossian's Motion for Reconsideration

Plaintiff

Jack Panossian moves the Court to

reconsider its September 23, 2024 order granting Defendant Tesla Motors, Inc.'s motion to compel arbitration.

Request for Judicial Notice

Plaintiff

requests the Court take judicial notice of two appellate court opinions: Doss v. Tesla, Inc. and Betanco v. Living Spaces Furniture, LLC. These opinions are subject to judicial notice under Evidence Code section 452(a), but as legal authority, there is no need for the Court to take judicial notice.

Plaintiff's

request for judicial notice is denied as unnecessary.

Motion for Reconsideration

Plaintiff moves the court to reconsider its

order under Code of Civil Procedure section 1008(c), which provides, "If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." The statute's plain

language does not permit a party to make such a motion to reconsider on this ground. Instead, a party's motion to reconsider an order granted by the court must abide by the restrictions of Code of Civil Procedure section 1008(a), including that the motion must be made "within 10 days" of the order. (Cox v. Bonni (2018) 30 Cal.App.5th 287, 312.)

A court may, however, reconsider its order on its own motion, even in conjunction with a party's motion for reconsideration. (In re Marriage of Barthold (2008) 158 Cal.App.4th 1301, 1308-1309; Cox, supra, 30 Cal.App.5th at p. 314 [trial court implicitly exercised its inherent authority and "did not grant defendant's motion on the merits, but only the relief sought by that motion"].) The Court has inherent constitutional power sua sponte to reconsider, correct, and change its own interim decisions. (Le Francois v. Goel (2005) 35 Cal.4th 1094, 1107.)

The Court declines to reconsider its prior order because the new authority on which Plaintiff relies does not constitute a change in law. Section 1008(c) "does not define what constitutes a 'change of law,' and its terminology gives the court very broad power." (Farmers Ins. Exchange v. Superior Court (2013) 218 Cal.App.4th 96, 106 (Farmers).) Plaintiff primarily relies on a new case issued by the Court of Appeal: Doss v. Tesla, Inc. (2026) 121 Cal.App.5th 81, petition for review filed (July 21, 2026). However, this new case did not disagree with the cases on which the Court relied on in its prior order: Southwest Airlines Co. v. Saxon (2022) 596 U.S. 450, 456 and Ortiz v. Randstad Inhouse Services, LLC (9th Cir. 2024) 95 F.4th 1152, 1161. Rather, the Doss court applied pre-existing law, such as Saxon and Ortiz, to a set of new, distinct facts. (See Wilson v. The La Jolla Group (2021) 61 Cal.App.5th 897, 921 ["trial court was not required to find that" new cases "were 'new law' for purposes of reconsideration," where they "relied on long-standing ... principles"].) In addition, Doss explicitly cabined its holding to the specific facts in that case, which are different from the facts presented here.[1] (See Doss, supra, 121 Cal.App.5th at p. 96 "[O]ur conclusion rests upon specific facts unique to interstate commerce by trucks and trailers and the particular duties of the yard hostlers in this case.".)

Plaintiff

alternatively relies on two other cases as constituting a change in law: Flowers Foods, Inc. v. Brock (2026) 608 U.S. ____ and Betanco v. Living Spaces

Furniture, LLC (2026) 121 Cal.App.5th 411, review filed Aug. 4, 2026. The Court finds these cases similarly do not constitute a change in law. They do not overrule controlling precedent, but rather apply this precedent to a set of distinct facts.

Even assuming Doss, Brock, or Betanco constitutes a change of law, the court declines to exercise its discretion to reconsider its order compelling arbitration. When applying Code of Civil Procedure section 1008(c), “the court may consider a number of factors in determining whether to exercise its discretion, including the importance of the change of law, the timing of the motion, and the circumstances of the case.” (Farmers, *supra*, 218 Cal.App.4th at p. 107.)

The Court granted Defendant’s motion to compel arbitration almost two years ago. Reconsidering that order now would undermine the purpose of arbitration “ ‘as a speedy and relatively inexpensive means of dispute resolution.’ ” (Wagner Construction Co. v. Pacific Mechanical Corp. (2007) 41 Cal.4th 19, 25.)

The Court also notes that its jurisdiction to interrupt the arbitration proceedings is limited. “Once a court grants the petition to compel arbitration and stays the action at law, the action at law sits in the twilight zone of abatement with the trial court retaining merely a vestigial jurisdiction over matters submitted to arbitration. This vestigial jurisdiction over the action at law consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not” and over other limited subjects. (Brock v. Kaiser Foundation Hospitals (1992) 10 Cal.App.4th 1790, 1796.)

Under the circumstances of this case, the Court concludes it should not exercise its discretion to reconsider its order.

Disposition

Plaintiff Jack Panossian’s motion for reconsideration is denied.

[1] The Court notes

that the plaintiff in Doss was a yard hostler whose “primary duty [was] to drive tractor trucks to move and position 53-foot trailers containing auto parts that were shipped to Tesla's factory in the stream of interstate commerce.” (Doss, *supra*, 121 Cal.App.5th at p. 90 [emphasis added].) This differs from the Plaintiff here, whose primary duty as a parts advisor was to manage inventory. Plaintiff only occasionally used a forklift to unload cargo.